

26STCV06607 26STCV06607

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Case Number: 26STCV06607 Hearing Date: August 21, 2026 Dept: 729

Superior

Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

SOCAL JET SERVICES, INC.,

vs.

CITY OF LONG BEACH.

Case No.:

26STCV06607

Hearing

Date: August 21, 2026

Defendant City of Long Beach's demurrer

to Plaintiff SoCal Jet Services, Inc.'s first amended complaint is sustained as to the 1st and 2nd causes of action with 20 days leave to amend.

Defendant City of Long

Beach's motion to strike is denied as moot.

Defendant City of Long Beach ("City") ("Defendant")

demurs to the 1st and 2nd causes of action in Plaintiff SoCal Jet Services, Inc.'s ("SCJ") ("Plaintiff") first amended complaint ("FAC"). (Notice of Demurrer, pgs. 2-3; C.C.P. §430.60; CRC, Rule 3.1320.)

Defendant also moves to strike portions of Plaintiff's FAC. (Notice of MTS, pgs. 2-3; C.C.P. §§435, 436.)[1]

A. Demurrer

Meet and Confer

Before filing a demurrer, the moving party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading and obviate the need for filing the demurrer. (C.C.P. §430.41, emphasis added.)

Defendant's counsel declares that he emailed a "meet and confer letter" to Plaintiff's counsel on March 30, 2026. (See Decl. of Russell ¶1.) Defendant's counsel's declaration is not sufficient under C.C.P. §430.41(a). Mere letter writing is not contemplated as a sufficient meet and confer. The moving party must meet and confer in person, by telephone, or by video conference. However, failure to meet and confer is not grounds to overrule or sustain a demurrer. (C.C.P. §430.41(a)(4).) Accordingly, the Court will consider Defendant's demurrer.

Background

Plaintiff filed its initial Complaint on February 27, 2026, against Defendant alleging four causes of action: (1) injunctive relief; (2) private nuisance; (3) negligence; and (4) declaratory relief.

Plaintiff filed the operative FAC on March 27, 2026, alleging two causes of action: (1) private nuisance; and (2) negligence.

On April 24, 2026, Defendant filed the instant demurrer and accompanying motion to strike. On July 27, 2026, Plaintiff filed its opposition. On August 14, 2026,

Defendant filed its reply.

Summary of Demurrer

Defendant demurs to the FAC on the grounds that the 1st and 2nd causes of action fail to state facts sufficient to constitute a cause of action against Defendant. (See Notice of Demurrer, pgs. 2-3.)

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Insurance Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital District (1992) 2 Cal.4th 962, 967.)

Failure to State a Claim

Private Nuisance (1st COA)

"A nuisance is considered a 'public nuisance' when it 'affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.' A 'private nuisance' is defined to include any nuisance not covered by the definition of a public nuisance, and also includes some public nuisances. 'In other words, it is possible for a nuisance to be public and, from the perspective of individuals who suffer an interference with their use and enjoyment of land, to be private as well.'" (Mendez v. Rancho Valencia Resort Partners, LLC (2016) 3 Cal.App.5th 248, 261-262, internal citations omitted.)

“So long as the interference is substantial and unreasonable, and such as would be offensive or inconvenient to the normal person, virtually any disturbance of the enjoyment of the property may amount to a nuisance . . .” (Id. at pg. 262.)

As a prerequisite to filing suit for “money or damages” against a public entity, the California Government Claims Act (“Claims Act”) requires a claimant to present a written claim to the public entity. (Gov. Code §945.4.) A claim must include, among other things, the claimant's name and address, the date, place, and circumstances of the occurrence giving rise to the claim, a general description of the injury or damage incurred, and the names of the public employees involved, if known. (Gov. Code §§910, 954.4.)

The claim need not be drafted with technical precision. The purpose of the claims statutes is “to provide the public entity sufficient information to enable it to adequately investigate claims and to settle them, if appropriate, without the expense of litigation.” (City of San Jose v. Superior Court (1974) 12 Cal.3d 447, 455.)

A plaintiff may rely on the doctrine of substantial compliance so long as the factual basis for the cause of action asserted in the complaint is “fairly reflected” in the written claim. (Stockett v. Association of California Water Agencies Joint Powers Insurance Authority (2004) 34 Cal.4th 441, 446-447.) However, the doctrine applies only where the claimant has attempted to comply with the statute, but the claim is merely technically deficient. (Connelly v. County of Fresno (2006) 146 Cal.App.4th 29, 38.)

Substantial compliance cannot cure the total omission of an essential factual basis for liability. (Hall v. City of Los Angeles (1941) 19 Cal.2d 198.) Nor does it apply where the complaint alleges a factual basis for recovery that is not fairly reflected in the written claim. (State of California ex rel. Dept. of Transportation v. Superior Court (1984) 159 Cal.App.3d 331, 337-338.) If the complaint asserts theories of liability or factual circumstances not disclosed in the claim,

those causes of action must be barred for failure to comply with the claim presentation requirement. (See *Fall River Joint Unified School District v. Superior Court* (1988) 206 Cal.App.3d 431, 434-436.)

Thus, where a plaintiff relies on multiple theories of liability against a public entity, each cause of action must be fairly reflected in the written claim, and the factual circumstances set forth in the complaint must correspond with those described in the claim. (*Dixon v. City of Livermore* (2005) 127 Cal.App.4th 32, 40; see *Stockett*, 34 Cal.4th at pg. 447; *Nelson v. State of California* (1982) 139 Cal.App.3d 72, 79.)

The Claims Act does not apply, however, to nonpecuniary actions, “such as those seeking injunctive, specific or declaratory relief.” (*Canova v. Trustees of Imperial Irrigation District Employee Pension Plan* (2007) 150 Cal.App.4th 1487, 1493, as modified on denial of reh’g (June 8, 2007), as modified (June 11, 2007), quoting *Loehr v. Ventura County Community College District* (1983) 147 Cal.App.3d 1071, 1081.)

Plaintiff alleges that it has exhausted its administrative remedies pursuant to the California Tort Claims Act §§810–996.6 by timely filing a Claim for Damages form with Defendant on July 21, 2025, regarding the damages resulting from the May 5, 2025, incident. (FAC ¶8.)

Plaintiff alleges that on August 29, 2025, Defendant issued written Notice that it denied Plaintiff’s Claim for Damages, outlining that pursuant to California Government Code §945.6, that Plaintiff had six (6) months from the date of the denial to file a court action. (FAC ¶9.)

Plaintiff alleges that on or about May 5, 2025, a Defendant helicopter conducted a hazardous maneuver by hovering over Plaintiff’s Property, generating a powerful “downwash” effect that expelled dirt, debris, and foreign object damage into the inside of Plaintiff’s hangar area and adjoining outside area, causing significant property damage to aircraft parked on Plaintiff’s Property. (FAC ¶15.) Plaintiff alleges that this landing was so recklessly close to Plaintiff’s Property that it caused a staged aircraft to move, striking another staged aircraft. (FAC ¶15.)

Plaintiff alleges that on or about September 24, 2025, the same or similar helicopter either took off or landed recklessly, again generating a violent air-pressure disturbance. (FAC ¶15.) Plaintiff alleges that the turbulence was strong enough to knock a secure aircraft component to the floor, creating an obvious safety hazard. (FAC ¶15.)

Plaintiff's cause of action for private nuisance seeks nonpecuniary relief. (See FAC ¶¶42-46.) The Court acknowledges that Plaintiff's negligence cause of action does seek monetary damages. (See FAC ¶56.) Here, the allegations pertaining to the 1st cause of action need not be alleged in the Claims Act Notice. (Canova, 150 Cal.App.4th at pg. 1493; see Gov. Code §905 ["There shall be presented in accordance with Chapter 1 . . . and Chapter 2 . . . all claims for money or damages against local public entities . . ."], emphasis added.) Accordingly, Defendant's demurrer to Plaintiff's 1st cause of action based on the Government Claims Act is unavailing.

Defendant's demurrer on the basis that Plaintiff fails to allege the type of substantial and ongoing interference required to support a private nuisance claim is well taken. Sporadic or occasional disturbances do not constitute a substantial interference with the use and enjoyment of property. (Hellman v. La Cumbre Golf & Country Club (1992) 6 Cal.App.4th 1224, 1230-1231 [considering whether an interference is "continual or occasional" when determining whether a use is so "unreasonable" to constitute a nuisance].) A nuisance most often requires an interference that is continuous, recurring, or of sufficient duration and magnitude to meaningfully impair ordinary use of property. Plaintiff fails to allege a prolonged disturbance or ongoing condition that would allow a reasonable person to conclude that Plaintiff's use and enjoyment of the property has been materially impaired. At most, Plaintiff alleges two brief, isolated disturbances associated with helicopter activity. Such allegations describe nothing more than the type of temporary inconvenience or annoyance that the law recognizes members of an urban community must reasonably tolerate. (San Diego Gas & Electric Co. v. Superior Court (1996) 13 Cal.4th 893, 937-938.)

Accordingly, Defendant's demurrer to Plaintiff's 1st cause of

action is sustained with 20 days leave to amend.

Negligence (2nd COA)

“The elements of a cause of action for medical malpractice are:

(1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage.” (Lattimore v. Dickey (2015) 239 Cal.App.4th 959, 968.)

To establish liability under Government Code §835, a plaintiff must establish the following: (1) the public property was in a dangerous condition at the time of the injury; (2) the injury was proximately caused by the dangerous condition; (3) the dangerous condition created a reasonably foreseeable risk of the kind of injury incurred; and (4) either (a) the dangerous condition was created by a negligent or wrongful act or omission of a public employee acting within the scope of employment, or (b) the public entity had actual or constructive notice of the dangerous condition in sufficient time prior to the injury to have taken reasonable measures to protect against it. (Gov. Code §835; Cordova v. City of Los Angeles (2015) 61 Cal.4th 1099, 1105.)

A “dangerous condition” is defined as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code §830(a).)

Plaintiff alleges Defendant and its employees, owes and owed Plaintiff a duty of care as an adjacent landowner to reasonably manage its property so as not to cause harm to others in the vicinity. (FAC ¶50.) Plaintiff alleges on information and belief that Defendant had a duty under Government Code §835 to keep its property in a safe condition and that Defendant’s actions have created a dangerous condition that has caused Plaintiff a reasonably foreseeable harm. (FAC ¶51.)

Plaintiff alleges Defendant’s employees have been the ones causing harm to Plaintiff and have been acting within the scope of their employment with Defendant’s Long Beach Police Department Air Support Unit (“LBPD”) when

committing those harmful acts and as such, Defendant's LBPD is vicariously liable for their actions under Government Code §815.2. (FAC ¶52.)

Plaintiff alleges that Plaintiff has suffered substantial harm as a result of Defendant's LBPD's actions on May 5, 2025, as several clients have withdrawn their aircrafts or cancelled work after witnessing Defendant's LBPD's unsafe and reckless actions. (FAC ¶55.) Plaintiff alleges that it has also incurred hundreds of thousands of dollars in property damage and faces even higher costs for relocation and remediation should Defendant's LBPD's conduct be allowed to continue. (FAC ¶55.)

Plaintiff alleges that as a proximate and legal result of Defendant's LBPD's negligence, the Plaintiff's Property and Plaintiff have been, and continue to be, damaged. (FAC ¶56.) Plaintiff alleges the amount of damages sustained by Plaintiff exceeds Thirty-Five Thousand Dollars (\$35,000.00), which will be shown according to proof at trial. (FAC ¶56.)

Plaintiff fails to state a viable dangerous condition claim because a helicopter in flight does not constitute public property within the meaning of Government Code §835. California courts have consistently held that section 835 imposes liability only for dangerous conditions of the property itself, not for transient conduct or activities. (Stone v. State of California (1980) 106 Cal.App.3d 924, 928-929.) Public property is in a dangerous condition only when it is physically defective, damaged, or deteriorated in a manner that creates a substantial risk of injury to persons using the property with due care. (Cordova, 61 Cal.4th at pg. 1105.)

Here, Plaintiff's theory rests on alleged helicopter downwash arising from aircraft operations, not on any physical defect in the property itself. Plaintiff fails to allege that the subject airport property is defective, deteriorated, or unsafe when used with due care. Instead, Plaintiff challenges transient operational conduct, which falls outside the scope of §835.

Accordingly, Defendant's demurrer to the 2nd cause of action is sustained with 20 days leave to amend.

Conclusion

Defendant's demurrer to Plaintiff's 1st and 2nd causes of action are sustained with 20 days leave to amend.

Moving Party to give notice.

B. Motion to Strike

In light of the Court's ruling on Defendant's demurrer, Defendant's motion to strike is denied as moot.

Conclusion

Defendant's motion to strike is denied as moot.

Moving Party to give notice.

Dated: August _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1] The Court notes that Defendant improperly combined a notice for two separate motions. While a demurrer and a motion to strike can be filed simultaneously, each mechanism serves a distinct purpose. Therefore, two separate notices for two separate motions should be prepared.